

ought not to make (and it is believed that it has not in fact made) any alteration in the practice of the Court of granting maintenance where the mother has married again without any inquiry as to ability.

[34. **Where accumulation directed.**—Where a testator left property to the value of 10,000*l.* a year to be accumulated for twenty-one years, and directed that the accumulations should be laid out in the purchase of lands which, after the expiration of the twenty-one years, were to be held for A. for life, and after his death for his sons in strict settlement, and A.'s income was insufficient to enable him to bring up and educate his infant sons in a manner suitable to their prospective position in life, V. C. Malins allowed him 2,700*l.* a year out of the income of the property, with liberty to apply for an increased allowance if necessary when the children grew older (*b*). But in a subsequent case in Ireland where the circumstances were similar, the Court refused to follow the decision of V. C. Malins, and held that where there is an imperative trust to accumulate, it is the duty of the Court to carry out the testator's intention, and that the Court has no discretion to allow maintenance out of the income (*c*); and the Irish decision seems to be in accordance with sound principle.

35. **Interests of third parties protected.**—Where an accumulation has been directed by a testator, and the Court allows maintenance out of the accumulations, the order should be framed so as to protect the interests of third parties by directing the interests of the infants in any legacy or share of residue to be held as a security for recouping any diminution in the accumulations (*d*).

Where an infant was entitled, contingently on her attaining twenty-one or marrying, to a large property, the Court sanctioned a scheme for providing for her past and future maintenance, by effecting a policy of assurance payable on

[(*b*) *Havelock v. Havelock*, 17 Ch. D. 807; and see *Bennett v. Wyndham*, 23 Beav. 521; and S. C. 4 De G. F. & J. 259.]

[(*c*) *Kemmis v. Kemmis*, 13 L. R. Ir. 372; following *Shaw v. M'Mahon*,

8 Ir. Eq. R. 584; affirmed 15 L. R. Ir. 90.]

[(*d*) *Re Colgan*, 19 Ch. D. 305; see this case and *Re Arbuckle*, 2 Set. on Dec. 4th Ed. 726, for form of order providing for the recoupment.]